



CHAPTER lxxiv.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Carmarthen Hexham Liverpool Lymm Nantwich and Widnes. A.D. 1905.

[30th June 1905.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875 :

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 7) Act 1905. Short title.



CHAPTER lxxiv.

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1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 7) Act 1905. Short title.

A.D. 1905.

SCHEDULE.

BOROUGH OF CARMARTHEN.

*Carmarthen
Order.*

*Provisional Order for altering the Carmarthen Improvement
Act 1898.*

To the Mayor Aldermen and Burgesses of the Borough of Carmarthen;—

And to all others whom it may concern.

WHEREAS the Borough of Carmarthen (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban District Council and as such council are the local authority within the meaning of the Public Health Act 1875;

61 & 62 Vict.
c. cviii.

And whereas the Carmarthen Improvement Act 1898 (herein-after referred to as "the Local Act") is in force in the Borough;

And whereas by Section 20 of the Local Act the Corporation were empowered subject to the provisions of that Act to make and maintain in the lines and situations and upon the lands delineated on the deposited plans and according to the levels shown on the deposited sections referred to in that Act the waterworks described in that section including a storage reservoir (herein-after referred to as "the reservoir") situate wholly in the parish of Newchurch in the county of Carmarthen in the dingle known as the Nant cwm Tawel dingle the reservoir to be formed by an embankment extending across the said dingle and impounding the whole of the water flowing down the Tawel stream;

And whereas by Section 21 of the Local Act it was enacted that in constructing the waterworks or any of the waterworks authorised by the Local Act the Corporation might deviate from the lines thereof to any extent not exceeding the limits of deviation shown on the said deposited plans and might also deviate from the levels shown on the said deposited sections to any extent not exceeding three feet upwards and seven feet downwards but it was provided that the Corporation should not in the exercise of the powers of lateral deviation thereby given make any embankment or retaining wall of the reservoir of a greater height above the general surface of the ground than that shown on the deposited sections and three feet in addition;

A.D. 1905.

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61 & 62 Vict.
c. cviii.

And whereas the Carmarthen Improvement Act 1898 (herein-after referred to as "the Local Act") is in force in the Borough;

And whereas by Section 20 of the Local Act the Corporation were empowered subject to the provisions of that Act to make and maintain in the lines and situations and upon the lands delineated on the deposited plans and according to the levels shown on the deposited sections referred to in that Act the waterworks described in that section including a storage reservoir (herein-after referred to as "the reservoir") situate wholly in the parish of Newchurch in the county of Carmarthen in the dingle known as the Nant cwm Tawel dingle the reservoir to be formed by an embankment extending across the said dingle and impounding the whole of the water flowing down the Tawel stream;

And whereas by Section 21 of the Local Act it was enacted that in constructing the waterworks or any of the waterworks authorised by the Local Act the Corporation might deviate from the lines thereof to any extent not exceeding the limits of deviation shown on the said deposited plans and might also deviate from the levels shown on the said deposited sections to any extent not exceeding three feet upwards and seven feet downwards but it was provided that the Corporation should not in the exercise of the powers of lateral deviation thereby given make any embankment or retaining wall of the reservoir of a greater height above the general surface of the ground than that shown on the deposited sections and three feet in addition;

[5 EDW. 7.] *Local Government Board's* [Ch. lxxiv.]
Provisional Orders Confirmation (No. 7) Act, 1905.

And whereas by Section 57 of the Local Act the Corporation were empowered to borrow for the waterworks authorised by the Local Act and generally for the improvement of their waterworks undertaking the sum of twenty-five thousand pounds and also with the approval of the Local Government Board such further moneys as they might require for any of the purposes of that Act including their waterworks undertaking;

A.D. 1905.
Carmarthen
Order.

And whereas in constructing the reservoir and works connected therewith it was found to be necessary to deviate from the lines and levels shown on the said deposited plans and sections and to exceed the deviations allowed by Section 21 of the Local Act by raising the embankment forming the reservoir within the limits of lateral deviation shown on the said deposited plans to a height of eight feet above that shown on the said deposited sections;

And whereas the deviation in height of the said embankment does not enable the Corporation to impound or take any more water than they were authorised by the Local Act to take and use and the said deviation has not affected and will not affect prejudicially any other rights and it is expedient that the Local Act be altered so as to enable the Corporation to borrow the moneys expended in the completion of the reservoir and other waterworks mentioned in the Local Act notwithstanding the said deviation:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect that is to say:—

38 & 39 Vict.
c. 55.

Art. I. The powers of borrowing money with the approval of the Local Government Board conferred upon the Corporation by Section 57 of the Local Act shall be exerciseable by the Corporation for the purpose of defraying the cost of the construction of the reservoir and other works connected therewith notwithstanding that in constructing the reservoir and other works deviations to the extent herein before mentioned from the lines and levels prescribed by the Local Act have been made.

Borrowing
powers of Local
Act to apply to
reservoir &c.
notwithstand-
ing deviations
from plans.

Art. II. This Order may be cited as the Carmarthen Order 1905.

Given under the Seal of Office of the Local Government Board
this Twenty-second day of April One thousand nine hundred
and five.

(L.S.)

G. W. BALFOUR President.
S. B. PROVIS Secretary.

[5 EDW. 7.] *Local Government Board's* [Ch. lxxiv.]
Provisional Orders Confirmation (No. 7) Act, 1905.

And whereas by Section 57 of the Local Act the Corporation were empowered to borrow for the waterworks authorised by the Local Act and generally for the improvement of their waterworks undertaking the sum of twenty-five thousand pounds and also with the approval of the Local Government Board such further moneys as they might require for any of the purposes of that Act including their waterworks undertaking;

A.D. 1905.
Carmarthen
Order.

And whereas in constructing the reservoir and works connected therewith it was found to be necessary to deviate from the lines and levels shown on the said deposited plans and sections and to exceed the deviations allowed by Section 21 of the Local Act by raising the embankment forming the reservoir within the limits of lateral deviation shown on the said deposited plans to a height of eight feet above that shown on the said deposited sections;

And whereas the deviation in height of the said embankment does not enable the Corporation to impound or take any more water than they were authorised by the Local Act to take and use and the said deviation has not affected and will not affect prejudicially any other rights and it is expedient that the Local Act be altered so as to enable the Corporation to borrow the moneys expended in the completion of the reservoir and other waterworks mentioned in the Local Act notwithstanding the said deviation:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect that is to say:—

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Art. I. The powers of borrowing money with the approval of the Local Government Board conferred upon the Corporation by Section 57 of the Local Act shall be exerciseable by the Corporation for the purpose of defraying the cost of the construction of the reservoir and other works connected therewith notwithstanding that in constructing the reservoir and other works deviations to the extent herein before mentioned from the lines and levels prescribed by the Local Act have been made.

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(L.S.)

G. W. BALFOUR President.
S. B. PROVIS Secretary.

A.D. 1905.

URBAN DISTRICT OF HEXHAM.

Hexham Order. *Provisional Order for the alteration of the Hexham Local Board (Water) Act 1888 and certain Confirming Acts.*

To the Urban District Council of Hexham ; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Hexham (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Hexham (herein-after referred to as "the District") ;

51 & 52 Vict.
c. cliv.

59 & 60 Vict.
c. cviii.

3 Edw. 7.
c. lviii.

And whereas the unrepealed provisions of the Hexham Local Board (Water) Act 1888 (herein-after referred to as "the Local Act") as altered by the Hexham Order 1896 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 14) Act 1896 (herein-after referred to as "the Confirming Act of 1896") and the Hexham Order 1903 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1903 (herein-after referred to as "the Confirming Act of 1903") are in force in the District ;

And whereas by Section 6 of the Local Act the Hexham Local Board (who were the predecessors of the Council and are herein-after referred to as "the Local Board") were empowered to construct Waterworks ;

And whereas by Section 11 of the Local Act the Local Board were empowered in addition to the lands they were authorised to take under the compulsory powers of that Act from time to time by agreement to purchase and hold for the purposes of their water undertaking any land not exceeding in the whole five acres ;

And whereas by Section 30 of the Local Act the Local Board were empowered to borrow on the securities therein named such sums as they might from time to time think requisite for any of the purposes of that Act not exceeding ten thousand pounds ;

And whereas by the Hexham Orders 1896 and 1903 the Council were empowered with the sanction of the Local Government Board and subject to the provisions of the Hexham Order 1896 to borrow upon the security of the revenue arising from their water undertaking and of the district fund and general district rate of the District or upon either of those securities such sums not exceeding in the whole the sum of nine thousand pounds as might from time to time be necessary for the purposes of their water undertaking in addition to the said sum of ten thousand pounds ;

A.D. 1905.

URBAN DISTRICT OF HEXHAM.

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And to all others whom it may concern.

WHEREAS the Urban District Council of Hexham (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Hexham (herein-after referred to as "the District") ;

51 & 52 Vict.
c. cliv.

59 & 60 Vict.
c. cviii.

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And whereas the unrepealed provisions of the Hexham Local Board (Water) Act 1888 (herein-after referred to as "the Local Act") as altered by the Hexham Order 1896 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 14) Act 1896 (herein-after referred to as "the Confirming Act of 1896") and the Hexham Order 1903 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1903 (herein-after referred to as "the Confirming Act of 1903") are in force in the District ;

And whereas by Section 6 of the Local Act the Hexham Local Board (who were the predecessors of the Council and are herein-after referred to as "the Local Board") were empowered to construct Waterworks ;

And whereas by Section 11 of the Local Act the Local Board were empowered in addition to the lands they were authorised to take under the compulsory powers of that Act from time to time by agreement to purchase and hold for the purposes of their water undertaking any land not exceeding in the whole five acres ;

And whereas by Section 30 of the Local Act the Local Board were empowered to borrow on the securities therein named such sums as they might from time to time think requisite for any of the purposes of that Act not exceeding ten thousand pounds ;

And whereas by the Hexham Orders 1896 and 1903 the Council were empowered with the sanction of the Local Government Board and subject to the provisions of the Hexham Order 1896 to borrow upon the security of the revenue arising from their water undertaking and of the district fund and general district rate of the District or upon either of those securities such sums not exceeding in the whole the sum of nine thousand pounds as might from time to time be necessary for the purposes of their water undertaking in addition to the said sum of ten thousand pounds ;

And whereas it is expedient that the Council should be empowered to construct additional works in connexion with and for the purposes of their water undertaking and to borrow further moneys for those purposes : A.D. 1905.
Hexham Order.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act and the Confirming Act of 1896 shall be altered so that the following provisions shall take effect that is to say :— 38 & 39 Vict.
c. 55.

Art. I.—(1) In addition to the works authorised by the Local Act the Council may subject to such conditions as may be prescribed and in accordance with such plans and sections as may be approved by the Local Government Board construct a service reservoir and works in connexion therewith on lands to be acquired by them under and in pursuance of the Local Act and to be approved by the Local Government Board and may maintain the said reservoir and works when constructed as part of their waterworks undertaking. Additional
reservoir and
works for sup-
ply of water.

(2) Nothing in subdivision (1) of this Article shall empower the Council to take use or appropriate any water for the purposes of their water undertaking otherwise than in accordance with the provisions of the Local Act.

(3) Sections 53 54 308 327 to 329 and 332 of the Public Health Act 1875 shall apply and have effect in relation to any works and to any powers which the Council may construct or exercise in pursuance of subdivision (1) of this Article as if the said sections were herein re-enacted and in terms made applicable to the Council and to the said works and powers with the substitution of a reference to the water limits for any reference in the said sections to the district of a local authority and with such other modifications as may be necessary. Application of
provisions of
Public Health
Act 1875 to
works and
certain powers.

Art. II. The Local Act as altered by the Hexham Orders 1896 and 1903 and the Confirming Act of 1896 so far as it relates to the Hexham Order 1896 shall have effect as if in Article I. of the Hexham Order 1896 the words "nineteen thousand pounds" were substituted for the words "nine thousand pounds". Increase of
borrowing
powers for pur-
poses of water
undertaking.

Art. III. This Order may be cited as the Hexham Order 1905 and the Hexham Orders 1896 and 1903 and this Order may be cited together as the Hexham Orders 1896 to 1905.

Given under the Seal of Office of the Local Government Board
this Twenty-sixth day of April One thousand nine hundred
and five.

(L.S.)

G. W. BALFOUR President.

S. B. PROVIS Secretary.

And whereas it is expedient that the Council should be empowered to construct additional works in connexion with and for the purposes of their water undertaking and to borrow further moneys for those purposes :

A.D. 1905.

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Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act and the Confirming Act of 1896 shall be altered so that the following provisions shall take effect that is to say :—

38 & 39 Vict.
c. 55.

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Additional
reservoir and
works for sup-
ply of water.

(2) Nothing in subdivision (1) of this Article shall empower the Council to take use or appropriate any water for the purposes of their water undertaking otherwise than in accordance with the provisions of the Local Act.

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Application of
provisions of
Public Health
Act 1875 to
works and
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Art. II. The Local Act as altered by the Hexham Orders 1896 and 1903 and the Confirming Act of 1896 so far as it relates to the Hexham Order 1896 shall have effect as if in Article I. of the Hexham Order 1896 the words "nineteen thousand pounds" were substituted for the words "nine thousand pounds".

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Art. III. This Order may be cited as the Hexham Order 1905 and the Hexham Orders 1896 and 1903 and this Order may be cited together as the Hexham Orders 1896 to 1905.

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this Twenty-sixth day of April One thousand nine hundred
and five.

(L.S.)

G. W. BALFOUR President.

S. B. PROVIS Secretary.

A.D. 1905.

CITY OF LIVERPOOL.

*Liverpool
Order.*

*Provisional Order for altering the Liverpool Corporation
Act 1902.*

To the Mayor Aldermen and Citizens of the City of Liverpool;—

And to all others whom it may concern.

WHEREAS the City of Liverpool (herein-after referred to as "the City") is an Urban Sanitary District of which the Mayor Aldermen and Citizens acting by the council (herein-after referred to as "the Corporation") are the Urban Sanitary Authority;

2 Edw. 7.
c. cxxl.

And whereas the unrepealed provisions of the Liverpool Corporation Act 1902 (herein-after referred to as "the Local Act") are in force in the City;

And whereas by Section 12 of the Local Act the Corporation were empowered to acquire certain lands for the protection of their waterworks and waters and by Section 51 the Corporation were empowered to borrow any sums not exceeding four hundred and eighty-five thousand pounds for the purposes of the execution of certain street improvement works authorised by the Local Act and for the acquisition of lands but the amount which might be borrowed or appropriated for either of those purposes was not specified in that section;

And whereas by Section 52 of the Local Act provision was made with respect to the method of repayment of any moneys borrowed under that Act;

And whereas it is expedient to authorise the Corporation to borrow further moneys for the purposes of their water undertaking and to make such other provisions as are herein contained:

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall have effect that is to say:—

Additional
borrowing
powers for
water under-
taking.

Art. I. Of the amount which the Corporation are authorised to borrow by Section 51 of the Local Act the sum of two hundred and fifty-five thousand pounds may be borrowed and appropriated for the purchase of the lands authorised to be acquired under Section 12 and the Corporation may with the sanction of the Local Government Board and subject to the provisions of this Order borrow such sum not exceeding one hundred thousand pounds as may be necessary for the purposes of that undertaking in addition to the moneys which they are already authorised to borrow for the acquisition of lands for the purposes of protection.

Period for
repayment of
borrowed
money.

Art. II. The moneys borrowed under this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the

A.D. 1905.

CITY OF LIVERPOOL.

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Order.*

*Provisional Order for altering the Liverpool Corporation
Act 1902.*

To the Mayor Aldermen and Citizens of the City of Liverpool;—

And to all others whom it may concern.

WHEREAS the City of Liverpool (herein-after referred to as "the City") is an Urban Sanitary District of which the Mayor Aldermen and Citizens acting by the council (herein-after referred to as "the Corporation") are the Urban Sanitary Authority;

2 Edw. 7.
c. cxxl.

And whereas the unrepealed provisions of the Liverpool Corporation Act 1902 (herein-after referred to as "the Local Act") are in force in the City;

And whereas by Section 12 of the Local Act the Corporation were empowered to acquire certain lands for the protection of their waterworks and waters and by Section 51 the Corporation were empowered to borrow any sums not exceeding four hundred and eighty-five thousand pounds for the purposes of the execution of certain street improvement works authorised by the Local Act and for the acquisition of lands but the amount which might be borrowed or appropriated for either of those purposes was not specified in that section;

And whereas by Section 52 of the Local Act provision was made with respect to the method of repayment of any moneys borrowed under that Act;

And whereas it is expedient to authorise the Corporation to borrow further moneys for the purposes of their water undertaking and to make such other provisions as are herein contained:

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall have effect that is to say:—

Additional
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Art. II. The moneys borrowed under this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the

[5 EDW. 7.] *Local Government Board's* [Ch. lxxiv.]
Provisional Orders Confirmation (No. 7) Act, 1905.

Corporation with the sanction of the Local Government Board in each case determine. A.D. 1905.

Art. III. Section 52 of the Local Act shall apply to any moneys borrowed under this Order as if those moneys were moneys borrowed under the powers of the Local Act. *Liverpool Order.*
Application of Section 52 of Local Act.

Art. IV. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of this Order the costs incurred by the Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Corporation and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Corporation shall be a debt due to the Crown from the Corporation. Inquiries and expenses.

Art. V. This Order may be cited as the Liverpool Order 1905.

Given under the Seal of Office of the Local Government Board
this Twenty-second day of April One thousand nine hundred
and five.

'L.S.)

G. W. BALFOUR President.
S. B. PROVIS Secretary.

URBAN DISTRICT OF LYMM.

Provisional Order for altering the Lymm Local Board (Gas) *Lymm Order.*
Act 1872.

To the Urban District Council of Lymm ; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Lymm (herein-after referred to as "the Council") are the Local Authority within the meaning of the Public Health Act 1875 for the Urban District of Lymm (herein-after referred to as "the district") and the unrepealed provisions of the Lymm Local Board (Gas) Act 1872 (herein-after referred to as "the Local Act") are in force in the district ; 35 & 36 Vict. c. lxxv.

And whereas under and by virtue of the Local Act the Council manufacture and supply gas and carry on a gas undertaking ;

And whereas by Section 34 of the Local Act it was enacted that all costs charges and expenses of and incidental to the executing of that Act and all moneys from time to time borrowed under that Act and the interest thereon and all other expenses and liabilities under and with respect to that Act and all sums of money payable under the agreement therein referred to should be charged on and paid out of the revenue arising under that Act and from the gasworks rates authorised thereby and that any surplus which in any year might remain after satisfying and paying such costs charges

[5 EDW. 7.] *Local Government Board's* [Ch. lxxiv.]
Provisional Orders Confirmation (No. 7) Act, 1905.

Corporation with the sanction of the Local Government Board in each case determine. A.D. 1905.

Art. III. Section 52 of the Local Act shall apply to any moneys borrowed under this Order as if those moneys were moneys borrowed under the powers of the Local Act. *Liverpool Order.*
Application of Section 52 of Local Act.

Art. IV. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of this Order the costs incurred by the Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Corporation and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Corporation shall be a debt due to the Crown from the Corporation. Inquiries and expenses.

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Given under the Seal of Office of the Local Government Board
this Twenty-second day of April One thousand nine hundred
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(L.S.)

G. W. BALFOUR President.
S. B. PROVIS Secretary.

URBAN DISTRICT OF LYMM.

Provisional Order for altering the Lymm Local Board (Gas) *Lymm Order.*
Act 1872.

To the Urban District Council of Lymm ; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Lymm (herein-after referred to as "the Council") are the Local Authority within the meaning of the Public Health Act 1875 for the Urban District of Lymm (herein-after referred to as "the district") and the unrepealed provisions of the Lymm Local Board (Gas) Act 1872 (herein-after referred to as "the Local Act") are in force in the district ; 35 & 36 Vict.
c. lxxv.

And whereas under and by virtue of the Local Act the Council manufacture and supply gas and carry on a gas undertaking ;

And whereas by Section 34 of the Local Act it was enacted that all costs charges and expenses of and incidental to the executing of that Act and all moneys from time to time borrowed under that Act and the interest thereon and all other expenses and liabilities under and with respect to that Act and all sums of money payable under the agreement therein referred to should be charged on and paid out of the revenue arising under that Act and from the gasworks rates authorised thereby and that any surplus which in any year might remain after satisfying and paying such costs charges

[Ch. lxxiv.] *Local Government Board's* [5 EDW. 7.]
Provisional Orders Confirmation (No. 7) Act, 1905.

A.D. 1905. expenses and liabilities and sums of money and setting apart the prescribed
Lymm Order. sum as a sinking fund should be applied to such extensions of the mains
and works and to such other purposes connected with the gas undertaking
as should from time to time seem requisite or desirable ;

And whereas it is expedient that the Council should be empowered to
carry to the district fund of the district all or any part of any such surplus as
is hereinbefore mentioned and that the Local Act should in other respects be
amended in the manner herein-after set forth :

38 & 39 Vict.
c. 55. Now therefore We the Local Government Board in pursuance of the
powers given to Us by Section 303 of the Public Health Act 1875 and by
any other enactments in that behalf do hereby order that from and after
the date of the Act of Parliament confirming this Order the Local Act shall
be altered so that the following provisions shall take effect that is to say :—

Repeal of Section
34 of Local Act.

Art. I. Section 34 of the Local Act shall be repealed.

Application of
gas revenue.

Art. II. All moneys from time to time received by the Council from
the gasworks rates authorised by the Local Act or by way of revenue from
their gas undertaking shall be applied for the following purposes :—

In payment of the gas establishment charges that is to say the
expenses properly chargeable to revenue of continuing conducting
managing enlarging extending and maintaining the gasworks and
the gas undertaking of the Council ;

In payment of the interest on the moneys borrowed or re-borrowed for
the purposes of the gas undertaking ;

In setting apart as a sinking fund the yearly sum prescribed by
Section 25 of the Local Act ;

In payment if the Council think fit of the expenses of executing any
permanent works authorised for the purposes of the gas undertaking ;

So much of any balance remaining in any year of the income of the
gas undertaking (including any surplus profits which may have
accumulated up to the Thirty-first day of March One thousand nine
hundred and five) as may in the opinion of the Council not be
required for carrying on the gas undertaking and paying the current
expenses connected therewith shall be carried to the credit of the
district fund of the district but no part of the income of the gas
undertaking which may be received or accrue after the said Thirty-
first day of March shall be carried to the credit of the district fund
when the price of gas to private consumers for lighting purposes
exceeds three shillings per one thousand cubic feet.

Art. III. This Order may be cited as the Lymm Gas Order 1905.

Given under the Seal of Office of the Local Government Board this
Twelfth day of April One thousand nine hundred and five.

(L.S.)

G. W. BALFOUR President.
S. B. PROVIS Secretary.

[Ch. lxxiv.] *Local Government Board's* [5 EDW. 7.]
Provisional Orders Confirmation (No. 7) Act, 1905.

A.D. 1905. expenses and liabilities and sums of money and setting apart the prescribed
Lymm Order. sum as a sinking fund should be applied to such extensions of the mains
and works and to such other purposes connected with the gas undertaking
as should from time to time seem requisite or desirable ;

And whereas it is expedient that the Council should be empowered to
carry to the district fund of the district all or any part of any such surplus as
is hereinbefore mentioned and that the Local Act should in other respects be
amended in the manner herein-after set forth :

38 & 39 Vict.
c. 55. Now therefore We the Local Government Board in pursuance of the
powers given to Us by Section 303 of the Public Health Act 1875 and by
any other enactments in that behalf do hereby order that from and after
the date of the Act of Parliament confirming this Order the Local Act shall
be altered so that the following provisions shall take effect that is to say :—

Repeal of Section
34 of Local Act.

Art. I. Section 34 of the Local Act shall be repealed.

Application of
gas revenue.

Art. II. All moneys from time to time received by the Council from
the gasworks rates authorised by the Local Act or by way of revenue from
their gas undertaking shall be applied for the following purposes :—

In payment of the gas establishment charges that is to say the
expenses properly chargeable to revenue of continuing conducting
managing enlarging extending and maintaining the gasworks and
the gas undertaking of the Council ;

In payment of the interest on the moneys borrowed or re-borrowed for
the purposes of the gas undertaking ;

In setting apart as a sinking fund the yearly sum prescribed by
Section 25 of the Local Act ;

In payment if the Council think fit of the expenses of executing any
permanent works authorised for the purposes of the gas undertaking ;

So much of any balance remaining in any year of the income of the
gas undertaking (including any surplus profits which may have
accumulated up to the Thirty-first day of March One thousand nine
hundred and five) as may in the opinion of the Council not be
required for carrying on the gas undertaking and paying the current
expenses connected therewith shall be carried to the credit of the
district fund of the district but no part of the income of the gas
undertaking which may be received or accrue after the said Thirty-
first day of March shall be carried to the credit of the district fund
when the price of gas to private consumers for lighting purposes
exceeds three shillings per one thousand cubic feet.

Art. III. This Order may be cited as the Lymm Gas Order 1905.

Given under the Seal of Office of the Local Government Board this
Twelfth day of April One thousand nine hundred and five.

(L.S.)

G. W. BALFOUR President.
S. B. PROVIS Secretary.

URBAN DISTRICT OF NANTWICH.

A.D. 1905.

*Provisional Order for altering the Nantwich Urban District
Council Act 1903.*

*Nantwich
Order.*

To the Urban District Council of Nantwich ; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Nantwich (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Nantwich (herein-after referred to as "the District") and the unrepealed provisions of the Nantwich Urban District Council Act 1903 (herein-after referred to as "the Local Act") 3 Edw. 7. c. civ. are in force in the District ;

And whereas by virtue of the powers conferred by Section 129 of the Local Act the Council may borrow—

(a) for the purchase of the undertaking of the Nantwich Gas Company Limited and for paying any sums payable by the Council to that company or any capital sums to their officers and servants by way of compensation under the Local Act and for defraying the costs charges and expenses incident to such purchase and to the transfer of the undertaking to the Council (other than the costs of the Local Act) the sums requisite for those purposes primarily on the security of the revenue of the gas undertaking and if they think fit in addition on the security of the district fund and general district rate; and

(b) for the extension and improvement of the gas undertaking of the Council and for working capital such sums as the Local Government Board may sanction ;

and with the approval of the Local Government Board such further moneys as the Council may require for any of the purposes of the Local Act ;

And whereas it is expedient that the said section should be amended in the manner herein-after set forth :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall have effect that is to say :— 38 & 39 Vict. c. 55.

Art. I. Section 129 of the Local Act shall apply and have effect as if— Security for loans.

- (1) the words "primarily on the security of the revenue of the gas undertaking and if they think fit in addition on the security of the district fund and general district rate" were inserted after the words "working capital" in paragraph (b); and

URBAN DISTRICT OF NANTWICH.

A.D. 1905.

*Provisional Order for altering the Nantwich Urban District
Council Act 1903.*

*Nantwich
Order.*

To the Urban District Council of Nantwich ; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Nantwich (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Nantwich (herein-after referred to as "the District") and the unrepealed provisions of the Nantwich Urban District Council Act 1903 (herein-after referred to as "the Local Act") 3 Edw. 7. c. civ. are in force in the District ;

And whereas by virtue of the powers conferred by Section 129 of the Local Act the Council may borrow—

- (a) for the purchase of the undertaking of the Nantwich Gas Company Limited and for paying any sums payable by the Council to that company or any capital sums to their officers and servants by way of compensation under the Local Act and for defraying the costs charges and expenses incident to such purchase and to the transfer of the undertaking to the Council (other than the costs of the Local Act) the sums requisite for those purposes primarily on the security of the revenue of the gas undertaking and if they think fit in addition on the security of the district fund and general district rate; and
- (b) for the extension and improvement of the gas undertaking of the Council and for working capital such sums as the Local Government Board may sanction ;

and with the approval of the Local Government Board such further moneys as the Council may require for any of the purposes of the Local Act ;

And whereas it is expedient that the said section should be amended in the manner herein-after set forth :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall have effect that is to say :— 38 & 39 Vict. c. 55.

Art. I. Section 129 of the Local Act shall apply and have effect as if— Security for loans.

- (1) the words "primarily on the security of the revenue of the gas undertaking and if they think fit in addition on the security of the district fund and general district rate" were inserted after the words "working capital" in paragraph (b); and

[Ch. lxxiv.] *Local Government Board's* [5 EDW. 7.]
Provisional Orders Confirmation (No. 7) Act, 1905.

A.D. 1905.

*Nantwich
Order.*

(2) the words "on the security of the district fund and general district rate" were inserted at the end of the section.

Art. II. This Order may be cited as the Nantwich Order 1905.

Given under the Seal of Office of the Local Government Board this
Twelfth day of April One thousand nine hundred and five.

(L.S.)

G. W. BALFOUR President.

S. B. PROVIS Secretary.

BOROUGH OF WIDNES.

Widnes Order.

*Provisional Order for altering the Widnes Improvement
Act 1867 and the Widnes Local Board Act 1875.*

To the Mayor Aldermen and Burgesses of the Borough of Widnes; —
And to all others whom it may concern.

WHEREAS the Borough of Widnes (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the council are the Urban District Council and as such council are the local authority within the meaning of the Public Health Act 1875;

30 & 31 Vict.
c. cxxvi.
38 & 39 Vict.
c. lxxxviii.

And whereas there are in force in the Borough the unrepealed provisions of the Widnes Improvement Act 1867 and the Widnes Local Board Act 1875 (each of which Acts is herein-after separately referred to as the Act of the year in which it was passed and both of which Acts are herein-after collectively referred to together as "the Local Acts") as altered by a Provisional Order of the Local Government Board dated the Second day of May One thousand eight hundred and seventy-nine (herein-after referred to as "the Order of 1879")

42 & 43 Vict.
c. cv.

which was confirmed by the Local Government Board's Provisional Orders Confirmation (Aspull &c.) Act 1879 by a Provisional Order of the Local Government Board dated the Twenty-fourth day of May One thousand eight hundred and eighty-six (herein-after referred to as "the Order of 1886") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1886 and by another Provisional Order of the Local Government Board dated the Twenty-fourth day of April One thousand eight hundred and eighty-five (herein-after referred to as "the Order of 1885") which was duly confirmed by Parliament but does not affect the subject-matter of this Order;

50 Vict. c. viii.

And whereas by Section 14 of the Act of 1867 and Section 11 of the Act of 1875 provision is made for enabling the predecessors of the Corporation to purchase by agreement additional lands for any of the purposes of those Acts;

And whereas by reason of Section 35 of the Act of 1867 the Corporation are unable to make or store gas on any lands other than the lands vested in them by that Act for the purpose of the gasworks and by reason of Section 11 of the Act of 1875 the Corporation are unable to use for the purpose of

[Ch. lxxiv.] *Local Government Board's* [5 EDW. 7.]
Provisional Orders Confirmation (No. 7) Act, 1905.

A.D. 1905.

*Nantwich
Order.*

(2) the words "on the security of the district fund and general district rate" were inserted at the end of the section.

Art. II. This Order may be cited as the Nantwich Order 1905.

Given under the Seal of Office of the Local Government Board this
Twelfth day of April One thousand nine hundred and five.

(L.S.)

G. W. BALFOUR President.

S. B. PROVIS Secretary.

BOROUGH OF WIDNES.

Widnes Order.

*Provisional Order for altering the Widnes Improvement
Act 1867 and the Widnes Local Board Act 1875.*

To the Mayor Aldermen and Burgesses of the Borough of Widnes; —
And to all others whom it may concern.

WHEREAS the Borough of Widnes (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the council are the Urban District Council and as such council are the local authority within the meaning of the Public Health Act 1875;

30 & 31 Vict.
c. cxxvi.
38 & 39 Vict.
c. lxxxviii.

And whereas there are in force in the Borough the unrepealed provisions of the Widnes Improvement Act 1867 and the Widnes Local Board Act 1875 (each of which Acts is herein-after separately referred to as the Act of the year in which it was passed and both of which Acts are herein-after collectively referred to together as "the Local Acts") as altered by a Provisional Order of the Local Government Board dated the Second day of May One thousand eight hundred and seventy-nine (herein-after referred to as "the Order of 1879")

42 & 43 Vict.
c. cv.

which was confirmed by the Local Government Board's Provisional Orders Confirmation (Aspull &c.) Act 1879 by a Provisional Order of the Local Government Board dated the Twenty-fourth day of May One thousand eight hundred and eighty-six (herein-after referred to as "the Order of 1886") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1886 and by another Provisional Order of the Local Government Board dated the Twenty-fourth day of April One thousand eight hundred and eighty-five (herein-after referred to as "the Order of 1885") which was duly confirmed by Parliament but does not affect the subject-matter of this Order;

50 Vict. c. viii.

And whereas by Section 14 of the Act of 1867 and Section 11 of the Act of 1875 provision is made for enabling the predecessors of the Corporation to purchase by agreement additional lands for any of the purposes of those Acts;

And whereas by reason of Section 35 of the Act of 1867 the Corporation are unable to make or store gas on any lands other than the lands vested in them by that Act for the purpose of the gasworks and by reason of Section 11 of the Act of 1875 the Corporation are unable to use for the purpose of

[5 EDW. 7.] *Local Government Board's* [Ch. lxxiv.]
Provisional Orders Confirmation (No. 7) Act, 1905.

manufacturing gas or residual products any lands except certain lands described in the schedule to that Act; A.D. 1905.

Widnes Order.

And whereas by Section 102 of the Act of 1867 provision was made with regard to the application of the gasworks fund formed under Section 88 of that Act;

And whereas by the Local Acts and the Order of 1879 the predecessors of the Corporation were empowered to borrow moneys for the purposes of their gas undertaking;

And whereas the Corporation have purchased the lands described in the Schedule A. to this Order and have agreed to purchase the lands described in the Schedule B. to this Order for the purposes of their gas undertaking and it is expedient that provision should be made as herein-after mentioned with respect to those lands and with respect to the borrowing of further money for the said purposes:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts as altered by the Order of 1879 and the Order of 1886 shall be further altered so that the following provisions shall have effect that is to say:— 38 & 39 Vict.
c. 55.

Art. I. Section 14 of the Act of 1867 and Section 11 of the Act of 1875 shall be deemed to apply and have effect and shall be deemed from and after the passing of the Act of 1875 always to have applied and had effect as if the Corporation or their predecessors were thereby authorised to purchase by agreement but not otherwise for any of the purposes of the Local Acts in addition to the lands which by the Local Acts they were authorised to purchase compulsorily any lands not exceeding in the whole ten acres. Explanation of
Section 14 of
Act of 1867
and Section 11
of Act of 1875.

Art. II. Notwithstanding anything in the Local Acts the Corporation may hold and use the lands described in Schedule A. to this Order and may hold and use the lands described in Schedule B. to this Order if and when those lands have been acquired by them for any purposes of their gas undertaking including the manufacture and storage of gas and residual products. Additional gas
lands.

Art. III. The Corporation may with the sanction of the Local Government Board and subject to the provisions of this Order borrow upon the security of the gasworks fund and the district fund and general district rate of the Borough or upon either of such securities such sums as may be necessary for the purposes of their gas undertaking in addition to the sums which they are already authorised to borrow for those purposes. Additional
borrowing
powers for
gas purposes.

Art. IV. For the purpose of raising money in the exercise of the powers of borrowing or of re-borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Corporation and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed or re-borrowed on mortgage under this Order. Local Loans
Act and certain
provisions of
Public Health
Act made
applicable.

manufacturing gas or residual products any lands except certain lands described in the schedule to that Act; A.D. 1905.

Widnes Order.

And whereas by Section 102 of the Act of 1867 provision was made with regard to the application of the gasworks fund formed under Section 88 of that Act;

And whereas by the Local Acts and the Order of 1879 the predecessors of the Corporation were empowered to borrow moneys for the purposes of their gas undertaking;

And whereas the Corporation have purchased the lands described in the Schedule A. to this Order and have agreed to purchase the lands described in the Schedule B. to this Order for the purposes of their gas undertaking and it is expedient that provision should be made as herein-after mentioned with respect to those lands and with respect to the borrowing of further money for the said purposes:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts as altered by the Order of 1879 and the Order of 1886 shall be further altered so that the following provisions shall have effect that is to say:— 38 & 39 Vict.
c. 55.

Art. I. Section 14 of the Act of 1867 and Section 11 of the Act of 1875 shall be deemed to apply and have effect and shall be deemed from and after the passing of the Act of 1875 always to have applied and had effect as if the Corporation or their predecessors were thereby authorised to purchase by agreement but not otherwise for any of the purposes of the Local Acts in addition to the lands which by the Local Acts they were authorised to purchase compulsorily any lands not exceeding in the whole ten acres. Explanation of
Section 14 of
Act of 1867
and Section 11
of Act of 1875.

Art. II. Notwithstanding anything in the Local Acts the Corporation may hold and use the lands described in Schedule A. to this Order and may hold and use the lands described in Schedule B. to this Order if and when those lands have been acquired by them for any purposes of their gas undertaking including the manufacture and storage of gas and residual products. Additional gas
lands.

Art. III. The Corporation may with the sanction of the Local Government Board and subject to the provisions of this Order borrow upon the security of the gasworks fund and the district fund and general district rate of the Borough or upon either of such securities such sums as may be necessary for the purposes of their gas undertaking in addition to the sums which they are already authorised to borrow for those purposes. Additional
borrowing
powers for
gas purposes.

Art. IV. For the purpose of raising money in the exercise of the powers of borrowing or of re-borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Corporation and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed or re-borrowed on mortgage under this Order. Local Loans
Act and certain
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Public Health
Act made
applicable.

[Ch. lxxiv.] *Local Government Board's* [5 EDW. 7.]
Provisional Orders Confirmation (No. 7) Act, 1905.

A.D. 1905.

Witness Order.
 Period for
 repayment
 of borrowed
 money.

Art. V. The moneys borrowed under this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Corporation with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned is herein-after referred to as "the prescribed period" and shall with reference to the moneys to be repaid be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

Mode of re-
 payment.

Art. VI.—(1) The Corporation shall repay the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

Formation
 maintenance
 and application
 of sinking
 fund.

(2) Subject to the provisions of Article VII. of this Order if the Corporation determine to repay by means of a sinking fund any moneys borrowed or re-borrowed under this Order the sinking fund shall be formed and maintained either—

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called an accumulating sinking fund.

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Corporation the Corporation being at liberty from time to time to vary and transpose such investments.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(5) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed Provided that in the case of an accumulating

[Ch. lxxiv.] *Local Government Board's* [5 EDW. 7.]
Provisional Orders Confirmation (No. 7) Act, 1905.

A.D. 1905. Art. V. The moneys borrowed under this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Corporation with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned is herein-after referred to as "the prescribed period" and shall with reference to the moneys to be repaid be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

Witness Order.
 Period for
 repayment
 of borrowed
 money.

Mode of re-
 payment. Art. VI.—(1) The Corporation shall repay the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

Formation
 maintenance
 and application
 of sinking
 fund. (2) Subject to the provisions of Article VII. of this Order if the Corporation determine to repay by means of a sinking fund any moneys borrowed or re-borrowed under this Order the sinking fund shall be formed and maintained either—

- (a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund; or
- (b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called an accumulating sinking fund.

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Corporation the Corporation being at liberty from time to time to vary and transpose such investments.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(5) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed Provided that in the case of an accumulating

sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

A.D. 1905.
Witness Order.

(6)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Corporation:

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Corporation in addition to the payments provided for by this Order.

Art. VII.—(1) If it appears to the Corporation at any time that the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

Increase
 reduction or
 discontinuance
 of payments to
 sinking fund.

(2) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Board approve.

(4) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of the Board discontinue

sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

A.D. 1905.
Witness Order.

(6)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Corporation:

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Corporation in addition to the payments provided for by this Order.

Art. VII.—(1) If it appears to the Corporation at any time that the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

Increase
 reduction or
 discontinuance
 of payments to
 sinking fund.

(2) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Board approve.

(4) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of the Board discontinue

A.D. 1905. the equal annual payments to the sinking fund until the Board otherwise direct.
Widnes Order.

Surplus of
sinking fund.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as, the Corporation with the consent of the Local Government Board may determine.

Power to
re-borrow.

Art. VIII. The Corporation shall except as herein-after provided have power to re-borrow for the purpose of paying off any moneys borrowed or re-borrowed under this Order which have not been repaid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at the disposal of the Corporation within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow:

Provided that the Corporation shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose:

Provided also that any moneys re-borrowed shall be deemed to form the same loan as the money for the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period.

Application
of borrowed
moneys.

Art. IX. All moneys from time to time borrowed or re-borrowed under this Order shall be applied by the Corporation only for the purposes for which the same are respectively authorised to be borrowed or re-borrowed excepting that moneys which may have been borrowed or re-borrowed in excess of the amount required shall be applied in such manner as the Corporation with the approval of the Local Government Board determine.

Receiver.

Art. X.—(1) Subject to the provisions of this Article any mortgagee of the Corporation in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him:

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to such applicants collectively be not less than five hundred pounds in the whole.

Return as to
provision for
repayment
of debt.

Art XI.—(1) The town clerk of the Borough shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in

A.D. 1905. the equal annual payments to the sinking fund until the Board otherwise direct.
Widnes Order.

Surplus of
sinking fund.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as, the Corporation with the consent of the Local Government Board may determine.

Power to
re-borrow.

Art. VIII. The Corporation shall except as herein-after provided have power to re-borrow for the purpose of paying off any moneys borrowed or re-borrowed under this Order which have not been repaid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at the disposal of the Corporation within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow:

Provided that the Corporation shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose:

Provided also that any moneys re-borrowed shall be deemed to form the same loan as the money for the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period.

Application
of borrowed
moneys.

Art. IX. All moneys from time to time borrowed or re-borrowed under this Order shall be applied by the Corporation only for the purposes for which the same are respectively authorised to be borrowed or re-borrowed excepting that moneys which may have been borrowed or re-borrowed in excess of the amount required shall be applied in such manner as the Corporation with the approval of the Local Government Board determine.

Receiver.

Art. X.—(1) Subject to the provisions of this Article any mortgagee of the Corporation in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him:

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to such applicants collectively be not less than five hundred pounds in the whole.

Return as to
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Art XI.—(1) The town clerk of the Borough shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in

respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of the town clerk showing for the year next preceding the making of the return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

A.D. 1905.

Widues Order.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether the instalment or annual payment or sum is required by this Order or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Board may by order direct that the sum in their order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as is mentioned in the said order and any such order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

Art. XII. Section 102 (A) of the Act of 1867 shall have effect as if for the paragraphs therein commencing "First" and "Secondly" there were substituted the paragraphs following that is to say:—

Alteration of
Section 102 (A)
of Act of 1867
as to applica-
tion of gas-
works fund.

First—for providing the moneys required to pay the interest on all moneys borrowed or re-borrowed for the purposes of the gas undertaking:

Secondly—for providing the requisite instalments or sinking funds or otherwise making provision for repayment of moneys borrowed or re-borrowed for the purposes of the gas undertaking.

Art. XIII. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of the Local Acts or this Order the costs incurred by the Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Corporation and the Board may certify the

Inquiries and
expenses.

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Inquiries and
expenses.

[Ch. lxxiv.] *Local Government Board's* [5 EDW. 7.]
Provisional Orders Confirmation (No. 7) Act, 1905.

A.D. 1905. amount of the costs so incurred and any sum so certified and directed by
Widnes Order. the Board to be paid by the Corporation shall be a debt due to the Crown
from the Corporation.

Art. XIV. This Order may be cited as the Widnes Order 1905 and the Order of 1879 the Order of 1885 and the Order of 1886 may be cited respectively as the Widnes Order 1879 the Widnes Order 1885 and the Widnes Order 1886 and the said four Orders may be cited together as the Widnes Orders 1879 to 1905.

The SCHEDULES above referred to.

SCHEDULE A.

All that piece of land containing 2546 square yards or thereabouts situate in the Township of Widnes in the Borough and bounded on the north by vacant land belonging or reputed to belong to the London and North Western Railway Company on the east in part by vacant land belonging or reputed to belong to the same company and in part by Earle Street and Anne Street East on the south by the coal yard belonging or reputed to belong to Richard Evans and Company Limited and on the west by the Saint Helens line of the London and North Western Railway Company.

SCHEDULE B.

All that piece of land containing 9660 square yards or thereabouts situate in the Township of Widnes aforesaid bounded on the west by the Saint Helens line aforesaid on the north and north-east by a siding of the London and North Western Railway Company on the east by Earle Street and on the south by land and works belonging or reputed to belong to the Widnes Foundry Company.

Given under the Seal of Office of the Local Government Board this
Fifteenth day of April One thousand nine hundred and five.

(L.S.)

G. W. BALFOUR President.
S. B. PROVIS Secretary.

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